

Insurance - Senior Managers Regime - Applications and Notifications

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1

Application and Definitions

1.1

Unless otherwise stated, this Part applies to:

1. (1) a _UK Solvency II firm_ ;
2. (2) in accordance with Insurance General Application 3, the _Society_ , as modified by 8;
3. (3) in accordance with Insurance General Application 3, a _managing agent_ , as modified by 8;
4. (4) a _third country branch undertaking_ (other than a _Swiss general insurer_);
5. (5) a _UK ISPV_ ; and
6. (6) a _third country insurance services provider_.

1.2

In this Part, the following definitions shall apply:

commencement date

has the meaning given in Insurance - Senior Managers Regime ? Transitional Provisions.

current approved person approval

means

1. (1) an approval granted to a _person_ under section 59 of _FSMA_ (Approval for particular arrangements):
 1. (a) by the _PRA_ for the performance of a _PRA senior management function_ ; or
 2. (b) by the _FCA_ for the performance of an _FCA-designated senior management function_ or a _significant influence function_ ;
2. but excludes a notice given under _section 59ZZA_ of _FSMA_ treating a _person_ as approved;
3. (2) a deemed approval given by:
 1. (a) the _PRA_ following the submission of a _conversion notification_ ; or
 2. (b) the FCA under any equivalent process contained in rules in the _FCA Handbook_ ; or
4. (3) for the purposes of 2.5(2) and 2.6(1), an approval granted to that _person_ under section 59 of _FSMA_ by either the _PRA_ or the _FCA_ to perform a _controlled function_ prior to the _commencement date_ but which ceased (i) on or before the _commencement date_ ; and (ii) during the six- _month_ period specified in 2.5(2) and 2.6(1), as the case may be.

regulatory body

means any authority, body or _person_ having, or who has had, responsibility for the supervision or regulation of any

regulated activities or other financial services, whether within the _United Kingdom_ or overseas.

significant influence function

has the meaning given in the _FCA Handbook_.

1.3

In this Part, _PRA approved person_ also includes a _person_ in relation to whom a notice under _section 59ZZA_ has been given to an _authorised person_.

2

Application to Perform a PRA Senior Management Function

2.1

The _PRA_ directs that a _firm_ must make a _PRA senior management approval application_ in accordance with 2.2, before the activities requiring approval commence.

2.2

The _PRA_ directs that a _firm_ must use Form A (long form) for a _PRA senior management approval application_ unless:

1. (1) the _firm_ must use Form E under 2.3; or
2. (2) the _firm_ must use Form A (shortened form) under 2.6.

2.3

The _PRA_ directs that, subject to 2.4 and 2.5, a _firm_ must use Form E for a _PRA senior management approval application_ if it is being made in respect of a _person_ who has a _current approved person approval_ and is either:

1. (1) ceasing to perform a _PRA senior management function_ and taking up a new _PRA senior management function_ for the same _firm_ or another member of its _group_ ; or
2. (2) ceasing to perform an _FCA-designated senior management function_ or a _significant influence function_ and taking up a _PRA senior management function_ for the _firm_ or another member of its _group_.

2.4

The _PRA_ directs that a _firm_ must not use Form E for a _PRA senior management approval application_ if:

1. (A1) a notification has been or should be made to the _PRA_ or _FCA_ under any of the following:
 1. (a) section 63(2A) of _FSMA_ (Duty to notify regulator of grounds for withdrawal of approval);
 2. (b) section 64C of _FSMA_ (Requirement for authorised person to notify regulator of disciplinary action);
2. (1) a notification has been made or should be made to the _PRA_ under any of the rules in Notifications 11 or to the _FCA_ under any equivalent provisions of the _FCA Handbook_ ;
3. (2) any of the circumstances in 4.2(2)(a)-(d) apply in relation to:
 1. (a) any _controlled function_ that that _person_ is ceasing to perform; or
 2. (b) any _controlled function_ that that _person_ is continuing to perform in relation to that _firm_ or a _firm_ in the same _group_.

2.5

The _PRA_ directs that a _firm_ must not use Form E if the _person_ to whom the _PRA senior management approval application_ relates:

1. (1) has never before been approved:
 1. (a) by the _PRA_ to perform a _controlled function_ ; or
 2. (b) by the _FCA_ to perform an _FCA-designated senior management function_ or a _significant influence function_
2. for any _firm_ ;
3. or
4. (2) has not been the subject of a _current approved person approval_ in relation to any _firm_ for more than six _months_ prior to the date of application.

2.6

1. (1) The _PRA_ directs that a _firm_ must use Form A (shortened form) for a _PRA senior management approval application_ if:
 1. (a) the _person_ to whom the application relates:
 1. (i) has at the time of application a _current approved person approval_ ; or
 2. (ii) has had a _current approved person approval_ within the previous six _months_ ; and
 2. (b) there have been no matters arising in relation to the fitness and propriety of the _person_ to whom the _PRA senior management approval application_ relates which mean that the information provided to the _FCA_ or _PRA_ regarding fitness and propriety in connection with a _current approved person approval_ may have changed since the application for the _current approved person approval_ was made.
2. (2) The _PRA_ directs that a _firm_ must not use Form A (shortened form) if the circumstances set out in 2.3 apply.

2.7

The _PRA_ directs that the form submitted for a _PRA senior management approval application_ must be accompanied by a _statement of responsibilities form_ or, where a _statement of responsibilities form_ has already been provided under Key Function Holder ? Notifications 2.2, an updated version of it.

2.8

[Deleted.]

2A

Section 59ZZA Application

2A.1

1. (1) In the case of a _section 59ZZA application_ , the following directions shall have effect in substitution for any directions relating to the provision of information, documents, _statement of responsibilities_ and form of application which would otherwise apply on the making of an application under section 60 of _FSMA_.
2. (2) The _PRA_ directs that the application must contain the information and be accompanied by such documents as are set out in the form approved by the _PRA_ for the purposes of this direction; except that where the application is in respect of a _person_ who holds a _current approved persons approval_ , Form E may be used in accordance with 2.3 instead.
3. (3) The _PRA_ directs that the application must be accompanied by a _statement of responsibilities_ in accordance with Insurance - Allocation of Responsibilities 5.4, containing such information as is set out in the form approved by the _PRA_ for the purposes of this direction; except that where a Form E is used pursuant to (2) above, the application must provide a _statement of responsibilities_ specified in 2.7.

4. (4) A _function_ performed by a _person_ in relation to whom a notice under _section 59ZZA_ of _FSMA_ could be given, shall not (otherwise than for the purposes of making an application under section 60 of _FSMA_), be treated as a _controlled function_ until the earliest of:

1. (a) 12 weeks beginning on the day on which _IP completion day_ occurs;

2. (b) the giving of the notice under _Section 59ZZA_; or

3. (c) the notification by the _PRA_ of its decision to grant or refuse the application.

5. (5) In this Chapter _statement of responsibilities form_ means for a _firm_ making a _section 59ZZA application_ the form to be completed by a _firm_ containing:

1. (a) the information referred to in Insurance ? Allocation of Responsibilities 5.1(3);

2. (b) in respect of 2A.1(3), the information required by section 60(2A) of _FSMA_; and

3. (c) in respect of Insurance ? Allocation of Responsibilities 5.5, the information required by section 60(2A) of _FSMA_.

2B

SRO Firms

2B.1

2A.1 shall apply to a _SRO firm_ as if:

1. (1) the reference in 2A.1(2) and (3) to the forms approved by the _PRA_ were references to the forms approved for the purposes of an application made by a _SRO firm_; and

2. (2) the reference in 2A.1(4)(a) to 12 weeks beginning on the day on which _IP completion day_ occurs were a reference to 12 weeks beginning on the day the _firm_ became a _SRO firm_.

3

Withdrawal of a PRA Senior Management Approval Application

3.1

The _PRA_ directs that a _firm_ withdrawing an outstanding _PRA senior management approval application_ must do so using Form B.

4

Ceasing to Perform a PRA Senior Management Function

4.1

A _firm_ must notify the _PRA_ no later than seven _business days_ after a _person_ permanently ceases to perform a _PRA senior management function_, using:

1. (1) Form E pursuant to the direction in 2.3 if a _person_ permanently ceases to perform a _PRA senior management function_ and the _firm_ is also making an application for the same _person_ to perform a new _PRA senior management function_; and

2. (2) in all other cases, Form C.

4.2

1. (1) A _firm_ must notify the _PRA_ as soon as practicable after it becomes aware, or has information which reasonably suggests, that it will submit a qualified Form C in respect of a _PRA senior management function holder_.

2. (2) Form C is qualified if the information it contains:

1. (a) relates to the fact that the _firm_ has dismissed or suspended the _PRA senior management function holder _from its employment;
2. (b) relates to the resignation by the _PRA senior management function holder _while under investigation by the _firm_ , the _PRA_ or any other _regulatory body_ ;
3. (c) includes a notification under any of the provisions set out in 2.4(A1) or (1); or
4. (d) otherwise reasonably suggests that it may affect the _PRA?s_ assessment of the _PRA senior management function holder?s_ fitness and propriety.

4A

Application to Vary a Conditional Approval

4A.1

The _PRA_ directs that a _firm_ making an application to the _PRA_ under section 63ZA of _FSMA_ (for the variation of a conditional approval) must do so by submitting:

1. (1) Form I; and
2. (2) a _statement of responsibilities form_ for the _PRA approved person_ concerned.

4A.2

The _PRA_ directs that a _firm_ withdrawing an application made under section 63ZA of _FSMA_ (Variation of senior manager?s approval at request of relevant authorised person) must do so using Form B.

5

Change in Details Relating to PRA Senior Management Function Holders

5.1

If a _PRA senior management function holder's_ title, name or national insurance number changes, the _firm_ for which the _person_ performs a _PRA senior management function_ must notify the _PRA_ of that change within seven _business days_ of the _firm_ becoming aware of the matter, using Form D.

5.1A

If a _PRA senior management function holder_ has been temporarily absent for more than a 12 week period, the _firm_ for which the _person_ performs a _PRA senior management function_ must notify the _PRA_ of:

1. (1) that absence within seven _business days_ of the end of the 12 week period; and
2. (2) the _PRA senior management function holder?s_ return from absence within seven _business days_ of the date of their return,

in each case, using Form D.

5.2

If, in relation to a _firm_ which has submitted an application on either Form A (long or shortened form) or Form E, as required by 2.2, any of the details relating to _PRA senior management functions_ are to change, the _firm_ must notify the _PRA_ using Form D as soon as reasonably practicable after the _firm_ becomes aware of the proposed change.

5.3

The _PRA_ directs that if a _PRA senior management function holder_ ceases to perform a _PRA senior management function_ for a _firm_ but continues to perform one or more _PRA senior management functions_ for the same _firm_ , the _firm_ must submit a revised _statement of responsibilities form_ for the remaining _PRA senior management function(s)_ , along with Form J.

6

Procedure for Making Applications and Notifications

6.1

The _PRA_ directs that save as required by 6.1A or 6.2, a _firm_ must make any applications, notifications or submissions required by this Part by submitting the form specified using the _ONA system_.

6.1A

The _PRA_ directs that a _firm_ making a _section 59ZZA application_ must make that application by submitting the information, documents, _statement of responsibilities_ and forms required by 2A in the manner set out in Notifications 7.

6.2

If, under any direction or rule in this Part:

1. (1) a _firm_ is required to make an application, notification or submission online; and
2. (2) the information technology systems used by the _PRA_ fail and online submission is unavailable for 24 hours or more,

until such time as facilities for online submission are restored, a _firm_ must submit the specified form in the way set out in Notifications 7.

6.3

1. (1) The _PRA_ directs that, if a _firm_ is required to submit a revised _statement of responsibilities_ under section 62A of _FSMA_ , it must do so by submitting Form J with the revised _statement of responsibilities form_.

2. (2) The _PRA_ directs that a _firm_ must not use Form J where the revisions are to be made as part of arrangements involving an application:

1. (a) for approval for the _person_ performing the _PRA senior management function_ concerned to perform another _PRA senior management function_ or _relevant senior management function_ for the same _firm_ ; or
2. (b) to vary under section 63ZA of _FSMA_ an approval for the _person_ performing the _PRA senior management function_ concerned to perform another _PRA senior management function_ or _relevant senior management function_ for the same _firm_ .

7

Forms

7.1

1. (1) Form A (long form) is available on the _PRA's_ website.
2. (2) Form A (shortened form) is available on the _PRA's_ website.
3. (3) Form B is available on the _PRA's_ website.
4. (4) Form C may be found here.

5. (5) Form D may be found here.
6. (6) Form E is available on the _PRA's_ website.
7. (6A) Form I is available on the _PRA's_ website.
8. (6B) Form J is available on the _PRA's_ website.
9. (7) The _statement of responsibilities form_ is available on the _PRA's_ website.

8

Lloyd's

8.1

This Part applies to the _Society_ and _managing agents_ separately.